

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.: _____

Date Filed: _____

JULIAN HERRERA,

Plaintiff designates
Queens County

Plaintiff,

The basis of Venue is
CPLR §503

-against-

S U M M O N S

THE CITY OF NEW YORK and P.O. DANIEL GANGALE
(Tax Reg. #951756),

Plaintiff resides at:
15 Knapp Street
Norwalk, CT 06854

Defendants,

County of Fairfield

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or if the Complaint is not served with the Summons, to serve a Notice of Appearance on the plaintiff's attorneys within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: June 16, 2020



REINGOLD & TUCKER

Attorneys for Plaintiff
26 Court Street
Brooklyn, New York 11242
(718) 875-4805

Address of Defendants:

100 Church Street
New York, New York 10007

1 Police Plaza
New York, New York 10007

SUPEME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

JULIAN HERRERA,

Plaintiff,

-against-

THE CITY OF NEW YORK and P.O. DANIEL
GANGALE (Tax Reg. #951756),

Defendants.

Index No.:

COMPLAINT

Plaintiff, by his attorneys, Reingold & Tucker, as and for his Complaint, respectfully alleges, upon information and belief, as follows:

1. Plaintiff is at all times hereinafter mentioned a resident of the County of Fairfield, City of Norwalk, State of Connecticut.

2. Defendant THE CITY OF NEW YORK (NYC) is and still is at all times hereinafter mentioned a Municipal Corporation organized and existing by virtue of the laws of the State of New York.

3. Defendant P.O. DANIEL GANGALE is a police officer under the employ of defendant NYC and was acting in the course of his employment with the New York City Police Department at all times herein mentioned.

4. Plaintiff has complied with the statutes herein in that he has filed a notice of claim with defendant, NYC within ninety (90) days of the date the claim herein accrued, and that more than thirty (30) days have elapsed since the presentation of said notice of claim and defendant has neglected or refused to adjust or make payment on said claims.

5. Plaintiff appeared for an oral examination pursuant to General Municipal Law § 50-h.

6. This action has been commenced within one (1) year and ninety (90) days of the date plaintiff's causes of action herein accrued.

7. On January 1, 2019, at approximately 9:45 am and continuing through January 10, 2019, plaintiff was assaulted and battered by defendant's police officers and was unlawfully and illegally physically seized and arrested by police officers under the employ of defendant and while acting in the course of their employment with the New York City Police Department. Plaintiff was further maliciously prosecuted until all criminal charges were resolved in his favor on July 15, 2019.

First Cause of Action: False Arrest/Imprisonment

8. Defendants arrested and imprisoned plaintiff by detaining him, handcuffing plaintiff and placing him in a cell operated the defendant and/or its governmental agency the New York City Police Department.

9. Defendants did not possess a warrant for said arrest and imprisonment of plaintiff.

10. Defendants intentionally arrested and imprisoned plaintiff.

11. Defendants used excessive force in arresting plaintiff.

12. Defendants did not have the right to arrest and imprison plaintiff.

13. Defendants did not have probable cause to arrest and imprison plaintiff.

14. Plaintiff did not consent said arrest and imprisonment.

15. Plaintiff was conscious of said arrest and imprisonment.

16. Defendants did not otherwise possess a privilege to arrest and imprison plaintiff.

17. As a result of said arrest and imprisonment, plaintiff sustained injuries including, but not limited to: loss of freedom and liberty, psychological, mental and emotional trauma, shame embarrassment and other suffering as well as personal and public humiliation, which required medical attention, as well as damages for future medical and lost wages, all to plaintiff's damage.

Second Cause of Action: Assault/Battery

18. Plaintiff incorporates paragraphs 1 - 17, inclusive above by reference as if set forth fully herein.

19. Defendants assaulted and battered plaintiff by intentionally offensively touching and searching plaintiff.

20. Plaintiff did not consent to the assaulted and battery.

21. As a result of said assault and battery, plaintiff sustained injuries including, but not limited to: loss of freedom and liberty, psychological, mental and emotional trauma, shame embarrassment and suffering as well as personal and public humiliation as well as damages for future medical expenses and lost wages, all to plaintiff's damage.

Third Cause of Action: 42 U.S.C. § 1983

22. Plaintiff incorporates paragraphs 1 - 21, inclusive above by reference as if set forth fully herein.

23. Defendant, The City of New York, violated plaintiff's civil rights pursuant to 42 U.S.C. § 1983 by instituting a policy and pattern of arresting without probable cause to do so, and manipulating evidence to arrest an individual who committed no crime.

24. Defendant, P.O. Daniel Gangale, violated plaintiff's civil rights pursuant to 42 U.S.C. § 1983 by arresting without probable cause to do so and manipulating evidence to arrest an individual who committed no crime.

25. As a result of said violations of 42 U.S.C. § 1983, plaintiff sustained injuries including, but not limited to, loss of freedom and liberty, psychological, mental and emotional trauma, shame, embarrassment, confinement, and suffering as well as personal and public humiliation as well as damages for future medical and lost wages, all to plaintiff's damage.

Fourth Cause of Action: Malicious Prosecution

26. Plaintiff incorporates paragraphs 1 - 25, inclusive above by reference as if set forth fully herein.

27. Defendants maliciously prosecuted plaintiff by complaining, commencing and/or

continuing the criminal proceeding against plaintiff in a criminal court action ending in favor of the plaintiff, by the absence of probable cause for the criminal proceeding and by defendant instituting the criminal proceeding with actual malice.

28. As a result of defendants' conduct, plaintiff suffered multiple personal injuries including: loss of liberty and freedom, personal and public humiliation and shame, psychological trauma and severe emotional distress and damages for future medical and lost wages, all to plaintiff's damage.

Fifth Cause of Action: Constitutional Violations

29. Plaintiff incorporates paragraphs 1 - 28, inclusive above by reference as if set forth fully herein.

30. Defendants arrested and imprisoned plaintiff by detaining and seizing him, handcuffing plaintiff and placing him in cell operated the defendant and/or its governmental agency the New York City Police Department.

31. Defendants did not possess a warrant for said arrest and imprisonment of plaintiff.

32. Defendants did not have probable cause to arrest and imprison plaintiff.

33. Plaintiff did not consent said arrest and imprisonment.

34. Plaintiff was conscious of said arrest and imprisonment.

35. Defendants did not otherwise possess a privilege to arrest and imprison plaintiff.

36. Defendants violated plaintiff's constitutional rights under the U.S. Constitution, Bill of Rights and the New York State Constitution.

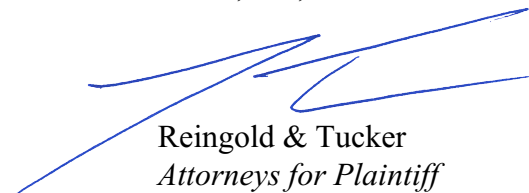
37. As a result of said arrest and imprisonment, plaintiff sustained injuries including, but not limited to: loss of freedom and liberty, psychological, mental and emotional trauma, shame embarrassment and suffering as well as personal and public humiliation, which required medical attention as well as damages for future medical and legal expenses and lost wages, all to plaintiff's

damage.

WHEREFORE, plaintiff demands judgment against defendants in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and for punitive damages, together with costs, legal fees and disbursements.

Dated: Brooklyn, New York
June 16, 2020

Yours, etc.,



Reingold & Tucker
Attorneys for Plaintiff
26 Court Street
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